

In cases where the goods have already been released the declarant may apply to have the declaration invalidated. The conditions for such invalidation are contained in [Article 148 of the DA](#).

All requests for invalidation of a declaration(s) must be made to the office through which the goods were cleared and must be made within three months of the date of acceptance of the declaration. This period may be extended only in exceptional cases.

6.6 Destruction

All requests for Customs staff to witness a destruction must be submitted to the Customs office through which the goods will be cleared in advance of any such activity. In general, any such request should be submitted only in circumstances where all reasonable efforts have already been made to deliver or export the goods. A record should be maintained by Customs of any such requests.

The trader will be asked to confirm the following:

- Type of goods.
- Who will destroy them (e.g. recycling company).
- Method of destruction.
- What will remain after the destruction (waste).

Where the Customs office is satisfied that the goods will be properly destroyed, it may waive the requirement for Customs staff to be present when the goods are destroyed (destroyed under customs supervision). Where the presence of a Customs officer is deemed necessary, a time and date agreeable to both parties can be arranged in advance.

Pursuant to Article 248 UUC IA any waste or scrap left after the destruction of the goods which a value can be attributed should be accounted for with a Customs Declaration. As a result, it would not be acceptable that goods are destroyed by putting them into a bin/skip as they maintain the same value and a risk remains of their unauthorised release into free circulation.